

EVIDENTIARY BRIEF · GOVERNMENT-FACING · JUNE 2026

Designed Based on Input?

The consultation the government says shaped ADAP, and the notice-and-recourse system it produced for the people it says it consulted.

On May 12, 2026, the Government of Alberta did three things on a single day: it made the regulation that defines the Alberta Disability Assistance Program, it published a fact sheet stating the program was “thoughtfully designed based on input from Albertans with disabilities,” and it began sending the letters that move tens of thousands of people onto it. This brief sets the government’s consultation claim beside the public record of the consultation it rests on, and beside the notice-and-recourse system the rollout actually delivered. It does not allege motive. It documents what the record shows, and asks the government to answer for it.

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1. WHAT THIS BRIEF ESTABLISHES

The Government of Alberta says the Alberta Disability Assistance Program (ADAP) was designed with the input of the people it affects. This brief does not dispute that a consultation happened. It places two things on the record and asks the government to reconcile them.

First, the public record of that consultation. The page that documents it was rewritten from an active portal into a look-back archive within seven days of the consultation closing, had its survey end date quietly changed, then sat frozen on “results currently under review” for 206 days while the legislation those results were said to inform was tabled, passed, and funded, and has since been removed from public web archiving. Second, what the rollout delivered to that same population: a transition communicated as “automatic,” an appeal window that closes without notice on July 2, a reassessment date the government cannot state consistently, and a front line that answers basic questions with “wait.”

Read together, the record supports one conclusion stated two ways. Either the consultation did not shape the design, or it did and this is the design. The government had years and claimed the community’s input. The notice-and-recourse system it produced fails the people that input was said to come from. Both readings are accountable, and the choice between them is the government’s to explain.

2. THE CLAIM ON THE RECORD

The government’s ADAP Fact Sheet, dated May 12, 2026, states that ADAP was “thoughtfully designed based on input from Albertans with disabilities,” and that “thousands of Albertans participated” through roundtables, telephone town halls, written submissions, and an online survey. That claim is the benchmark. Its credibility rests on the integrity and public discoverability of the consultation record that supports it. The rest of this brief tests the claim against that record and against the program it produced.

Government of Alberta, ADAP Fact Sheet (May 12, 2026).

3. THE CONSULTATION RECORD

The ADAP Discussion Guide was released on August 13, 2025. On that day the engagement page was an active consultation portal: a “Take the survey” button, a “Get involved” section, the written-submission address adapengagement@gov.ab.ca, and a stated deadline of September 12, 2025, matching the Discussion Guide. Internet Archive captures from August 13, August 14, and September 5, 2025 all show this same active portal with the same September 12 deadline.

Within seven days of the consultation closing, the page was rewritten into a retrospective archive. In that rewrite the survey end date was quietly changed from September 12 to September 14, 2025. The rewritten page then said “Results are currently under review” and that the feedback “will help shape the Alberta Disability Assistance Program.” That text did not change for 206 days, across six captures spanning September 19, 2025 to April 12, 2026 — the entire period in which the legislation the results were said to inform was tabled, passed, and operationally funded.

Date	Event	On the engagement page?
Sep 19, 2025	Page rewrite complete; retrospective “results under review” form in place	—
Nov 25, 2025	Bill 12 (Financial Statutes Amendment Act, 2025, No. 2) tabled	Not acknowledged
Dec 9, 2025	Bill 12 passed by the Legislature	Not acknowledged
Mar 24, 2026	Budget 2026: \$250M ADAP employment supports announced	Not acknowledged
Apr 12, 2026	Last public capture; page still reads “results under review”	Then blocked from archiving

Since April 12, 2026, the page has been blocked from capture by the Internet Archive’s Wayback Machine, so changes after that date cannot be independently tracked. For scale, Alberta’s own 2016 Persons with Developmental Disabilities Safety Standards consultation — a documented benchmark for what “designed based on input” has meant in this province — ran as a multi-phase engagement with hundreds of community members and produced eleven recommendations. The August–September 2025 ADAP consultation ran on a far more compressed timeline.

This record does not, on its own, prove anyone was deceived. Independent publications cited the Discussion Guide and the engagement process accurately throughout the consultation window. The point is narrower and verifiable: the public-facing record of the consultation was altered after the fact, frozen through the legislative period it was said to inform, and then removed from independent archiving. A consultation offered as the program’s justification should be able to stand in the open. The full capture-by-capture record is set out in the companion document, *The Engagement Page Record: A Forensic Timeline*.

ADAP engagement page (engage.alberta.ca), Internet Archive Wayback Machine captures, August 13, 2025 to April 12, 2026; ADAP Discussion Guide (August 2025); Report of the PDD Safety Standards Consultation 2016 (te Linde). Full record: The Engagement Page Record: A Forensic Timeline (ADSB).

4. ONE DATE — MAY 12, 2026

As late as the last snapshot the public can verify, on April 12, 2026, the engagement page still presented the consultation as live in effect: results “under review,” feedback that “will help shape” the program. Roughly a month later, the shaping was complete, codified, justified, and imposed — all on one day.

On May 12, 2026, three things happened	Instrument
The regulation that defines ADAP was made	O.C. 148/2026 (A.R. 96/2026)
The fact sheet calling ADAP “designed based on input” was published	ADAP Fact Sheet
The letters moving recipients onto ADAP began going out	“no action is required”

A program’s governing regulation, the public justification that it was built on community input, and the notices implementing it do not normally share a single date by accident. A regulation is drafted and finalized over weeks; a fact sheet is written to accompany a decision already made; letters to tens of thousands of people are

printed against a settled design. That all three landed on May 12 indicates the design was complete and locked before that day — while the only public-facing description of the consultation still told Albertans their feedback was under review and would help shape what was, by then, already written into law.

O.C. 148/2026 / A.R. 96/2026 (made May 12, 2026); Government of Alberta ADAP Fact Sheet (May 12, 2026); AISH-to-ADAP transition letters (issued beginning May 12, 2026).

5. WHAT THE ROLLOUT DELIVERED: NOTICE AND RECOURSE

Whatever the consultation shaped, this is the notice-and-recourse system the same government delivered to the same population. Each item below is drawn from the instruments themselves.

The appeal window closes on July 2, without notice. A current AISH recipient retains the statutory right to appeal a director’s decision, on a 30-day clock that runs from a notice of decision stating that right. The Ministerial Order filed as A.R. 87/2026 expands the list of decisions exempt from appeal to include the core determination — whether a person’s disability “permanently prevents employment” — and comes into force July 2, 2026. So the only window to contest the move as an AISH decision is open now and shuts on July 2. The letters communicating the move are styled “automatic” and “no action is required,” and tell recipients nothing about a window or its closing date.

The reassessment date contradicts itself. The route to keep AISH is reassessment. The government’s own program pages have stated it opens in June 2026; the transition letters say it begins in July 2026. Recipients cannot act on a date the government has not settled.

“No action is required” is misleading for anyone who wants to keep AISH. For a recipient who wishes to remain on AISH, action is precisely what is required — a reassessment application — and an appeal clock may be running. A phrase that reads as “do nothing” is, for that recipient, the opposite of accurate.

The front line cannot answer. Recipients calling the AISH line to ask whether the move is appealable, when reassessment opens, what “no action is required” means, or who made the determination, are told to wait until the program launches. A benefits administrator that cannot state, to the people it is moving, what their rights are and when they expire has not met the duty to inform.

The determination has no visible author. The stream determination — that a person belongs in ADAP rather than AISH — is, under A.R. 96/2026, a director’s decision. It is communicated as “automatic,” and the letters are signed “Sincerely, Assured Income for the Severely Handicapped Program,” with no name, title, or delegated authority. This question is set out in full in the companion brief, *Who Made the Determination?*

A.R. 87/2026 (Ministerial Order 2026-001, filed late April 2026; appeal exemptions) and A.R. 96/2026 (General Regulation), both in force July 2, 2026; AISH Act and AISH Policy Manual (Notice of Decision; 30-day appeal, extendable; only director’s decisions appealable); AISH-to-ADAP transition letters; ADAP Fact Sheet (May 12, 2026); Alberta Citizen’s Appeal Panel / reassessment pages. Companion: Who Made the Determination? (ADSB).

6. WHO THIS LANDS ON

Eligibility for AISH and ADAP requires, by the government’s own definition, a severe impairment of mental or physical functioning. For a large share of recipients, that includes conditions affecting reading, memory, attention, and the executive function required to track deadlines and manage paperwork. The letters that carry this transition are written in formal, dense language; they call a benefit change “automatic”; they say “no action is required”; and they say nothing about a recourse window or the date it closes.

The effect is not evenly distributed. A hidden 30-day clock inside a window that shuts on the day the new program begins is a deadline that the people least equipped to detect it are the most likely to miss. Whatever the intent, the design places the heaviest consequence — the silent loss of the right to contest — on the recipients least able to protect themselves against it. A notice truly built for this population would say, in plain words, that a window exists and the exact date it ends. These letters do the opposite.

7. WHAT THE RECORD ESTABLISHES, AND WHAT WE ASK

The government had a multi-year window and says it built ADAP on the community’s input. The public record of that input was rewritten after the fact, frozen through the legislative period it was said to inform, and removed from independent archiving. On May 12, 2026, the program was codified, justified as input-designed, and imposed in a single day. The notice-and-recourse system delivered to the consulted population leaves it unable to learn, in time, what its rights are or when they expire. The “we did not know” defence is not available to a government that ran the consultation, drafted the regulation, and printed the letters. We are not alleging motive. We are documenting a record and asking it be answered.

We ask the government to, in writing:

1	State whether the AISH-to-ADAP move is an appealable director’s decision, and whether the 30-day right to contest it survives until July 2, 2026.
2	State the single, settled date on which the reassessment route to keep AISH opens.
3	Direct the AISH line to give callers accurate information about appeal and reassessment, not “wait.”
4	Issue a plain-language notice to every recipient stating whether a recourse window exists and the exact date it closes.
5	Restore the engagement page to public archiving, and publish the consultation results and how they shaped — or did not shape — the program’s design.

This brief documents the public record and does not allege intent. Sources as cited in each section. Companion documents: The Engagement Page Record: A Forensic Timeline; Who Made the Determination?; Appeal or Reassess? Know Which One You Need (all ADSB, available from the campaign).

The Alberta Disability System Breakdown — Advocate

St. Albert, Alberta | June 2026

albertadisabilitysystembreakdown.netlify.app | albertadisabilitybreakdown@outlook.com